

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
DAMIEN CALDERON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER NAKIA GOODMAN, Shield No. 4782, POLICE OFFICER STEVEN TROISE, Shield No. 6342, POLICE OFFICER GEORGE STRYSKO, Tax Reg. 940776, SERGEANT JORGE ORTIZ, Tax Reg. 930884, SERGEANT CARLOS VIERA, Tax Reg. 926259, and JOHN DOES #1-6 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

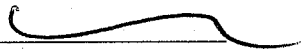
Plaintiff designates New York County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
August 13, 2015

Yours, etc.

/s/ 
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER NAKIA GOODMAN, Shield No. 4782, PSA 5, 221 East 123rd Street, New York, New York 10029

POLICE OFFICER STEVEN TROISE, Shield No. 6342, 13th Precinct, 230 East 21st Street, New York, New York 10010

POLICE OFFICER GEORGE STRYSKO, Tax Reg. 940776, 13th Precinct, 230 East 21st Street, New York, New York 10010

SERGEANT JORGE ORTIZ, Tax Reg. 930884, PSA 5, 221 East 123rd Street, New York, New York 10029

SERGEANT CARLOS VIERA, Tax Reg. 926259, PSA 5, 221 East 123rd Street, New York, New York 10029

SUPREME COURT OF THE STATE OF NEW YORK
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GOODMAN, Shield No. 4782, POLICE OFFICER
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GEORGE STRYSKO, Tax Reg. 940776, SERGEANT
JORGE ORTIZ, Tax Reg. 930884, SERGEANT CARLOS
VIERA, Tax Reg. 926259, and JOHN DOES #1-6 (names
and number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

----- X
Plaintiff DAMIEN CALDERON, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and New York common law, and the statutes of the State of New York. The defendants' unconstitutional treatment of plaintiff was in direct violation of a Federal Court's order for the NYPD and its officers to immediately stop violating individuals' constitutional rights in the manner that the officers violated plaintiff's rights in the case. See Ligon v. City of New York, 2913 U.S. Dist. LEXIS 2871 (S.D.N.Y. Jan. 8, 2013); see also Davis v. City of New York, 902 F. Supp. 2d, 405, 416-17 (S.D.N.Y. Oct. 4, 2012). On February 8, 2013, at approximately 3:30 p.m., plaintiff DAMIEN CALDARON was lawfully entering the apartment building where his friend lived, located at 1694 Madison Avenue, New York, New York, when the individually named defendant NYPD officers subjected plaintiff to an unlawful stop, questioning, frisk, search, detention, false arrest, and false imprisonment. Thereafter, plaintiff was transported against his will to the PSA 5 precinct whereat defendants unconstitutionally searched plaintiff, fingerprinted, and photographed him. Thereafter, the officers maliciously prosecuted plaintiff by initiating a prosecution against him without probable cause and denied plaintiff his Fifth Amendment right to due process and right to a fair trial by providing false,

misleading and/or incomplete information to the Manhattan District Attorney's Office and by swearing to the truthfulness of a Criminal Court Complaint that contained false information about plaintiff. Defendants City of New York and supervisors Sergeant JORGE ORTIZ and Sergeant CARLOS VIERA negligently hired, trained and supervised the defendant officers involved in plaintiff's arrest. Specifically, Sergeant JORGE ORTIZ and Sergeant CARLOS VIERA either neglected to supervise and train the defendant officers about the unlawfulness of plaintiff's arrest or negligently approved the arrest without examining whether the officers had a legal basis to arrest plaintiff. In the alternative, defendant City of New York negligently trained Sergeant JORGE ORTIZ, Sergeant CARLOS VIERA and the other supervising Sergeants employed by the NYPD about the legal standards officers must follow when they stop, question, frisk, and/or arrest individuals allegedly trespassing in privately owned apartment buildings throughout the City. Further, it does not appear as if the supervisory defendants had any conversations with the defendant officers about the legality of the arrest, and instead, simply "rubber stamped" his signature on their paperwork to verify the arrest. Moreover, the City of New York violated a Federal Court Order to retrain its officers to follow the proper legal standard for when they are permitted to stop, question, frisk, and arrest individuals in NYCHA buildings. Not only did the NYPD neglect to properly train its officers to comply with the Federal Court Order after it was issued, but upon information and belief, the NYPD continued to permit its officers and supervisors to use the unconstitutional legal standards they used previously when they performed vertical patrols and stopped, questioned, and frisked individuals in NYCHA. Ligon v. City of New York, 2913 U.S. Dist. LEXIS 2871 (S.D.N.Y. Jan. 8, 2013). Plaintiff claims Monell liability against the City of New York for having a policy, practice, or custom wherein its officers unlawfully continue to stop, question, frisk, and arrest individuals who are present lawfully in NYCHA buildings, in violation of the Federal Court's Orders cited herein as well as the United States Constitution. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested and maliciously prosecuted plaintiff in violation of the First, Fourth, and Fourteenth Amendments to the United States Constitution. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants denied plaintiff the right to due process and denied plaintiff the right to a fair trial in violation of the Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff DAMIEN CALDERON is a resident of the County of Bronx, State of New York.

3. Police Officer NAKIA GOODMAN, Shield No. 4782, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer NAKIA GOODMAN, Shield No. 4782, is and was at all times relevant herein, assigned to the PSA 5 precinct.

5. Police Officer NAKIA GOODMAN, Shield No. 4782, is being sued in her individual and official capacity.

6. Police Officer STEVEN TROISE, Shield No. 6342, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Police Officer STEVEN TROISE, Shield No. 6342, is and was at all times relevant herein, assigned to the PSA 5 precinct.

8. Police Officer STEVEN TROISE, Shield No. 6342, is being sued in his individual and official capacity.

9. Police Officer GEORGE STRYSKO, Tax Reg. 940776, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Police Officer GEORGE STRYSKO, Tax Reg. 940776, is and was at all times relevant herein, assigned to the PSA 5 precinct.

11. Police Officer GEORGE STRYSKO, Tax Reg. 940776, is being sued in his individual and official capacity.

12. Sergeant JORGE ORTIZ, Tax Reg. 930884, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Sergeant JORGE ORTIZ, Tax Reg. 930884, is and was at all times relevant herein, assigned to the PSA 5 precinct.

14. Sergeant JORGE ORTIZ, Tax Reg. 930884, is being sued in his individual and official capacity.

15. Sergeant CARLOS VIERA, Tax Reg. 926259, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Sergeant CARLOS VIERA, Tax Reg. 926259, is and was at all times relevant herein, assigned to the PSA 5 precinct.

17. Sergeant CARLOS VIERA, Tax Reg. 926259, is being sued in his individual and official capacity.

18. New York City Police Officers John Does #1-6 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-6 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in

conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On February 8, 2013, at approximately 3:30 p.m., plaintiff Damien Calderon arrived at 1694 Madison Avenue, New York, New York, a building owned and operated by the New York City Housing Authority (NYCHA), to visit a friend who lived in the building. Plaintiff's friend, a lawful tenant of the building, invited plaintiff as his guest into the building for a visit.

25. By way of background, during a "vertical patrol," New York City Police Department officers conduct roving pedestrian checkpoints in and around NYCHA residences, wherein they indiscriminately stop and question every person they observe, without objective individualized suspicion of a crime and unlawfully arrest individuals for trespass without probable cause.

26. The NYPD's unlawful trespass arrest practices implemented by NYPD officers fails to require that an arresting officer act upon observed behavior that reliably differentiates a suspected trespasser or "unauthorized person" in a NYCHA hallway from a lawful visitor in transit, or a building resident enjoying the common area of his own home.

27. Prior to the Federal Court decisions and orders in Davis v. City of New York and Ligon v. City of New York, discussed in detail below, NYPD officers in NYCHA buildings routinely stopped, questioned, and frisked individuals to determine whether they were trespassing in the buildings or committing another crime.

28. The Federal Court decision in Davis v. City of New York addresses the legality of the seizure of plaintiff in this case because the scenario in both cases are almost

identical, wherein plaintiff was unlawfully stopped, questioned, frisked, and arrested for trespass in a NYCHA building.

29. On the date of the incident, plaintiff entered the building and immediately proceeded to his friend's apartment.

30. As plaintiff walked through the lobby towards the elevator, the defendant police officers stopped, questioned, and frisked plaintiff without reasonable suspicion, probable cause, or any legal basis.

31. At no time did plaintiff commit a crime or give the defendant police officers an objective factual basis to suspect he was committing, had committed, or was about to commit a crime.

32. Plaintiff did not feel he was free to walk away from the officers because of the aggressive tone of voice with which the officers spoke to him and because of the close proximity of the officers to plaintiff's person, nor would it have been reasonable for him to feel that he could have walked away.

33. The defendant police officers unlawfully frisked plaintiff over his clothing, touching all areas of his body, searched inside plaintiff's pockets, inside of the waistband of his pants, and underneath his clothing.

34. At no time did the defendant police officers recover any weapons, drugs, or illegal contraband from plaintiff.

35. The defendant police officers then unlawfully interrogated plaintiff about whether he was trespassing in the building instead of following the proper legal standard where it is the officers' burden to prove the person is committing a crime, not visa versa.

36. The defendant police officers did not possess a factually objective reason to suspect plaintiff of trespassing into that building or that plaintiff was committing any other crime.

37. Although the officers were not legally justified in questioning plaintiff, Mr. Calderon was scared to challenge two police officers' authority and responded to the officers' questions politely.

38. Plaintiff explained to the officers that he was invited to the building by his friend, a lawful tenant, provided the officers' with his friend's name and apartment number, and told the officers that he was proceeding directly to his friend's apartment.

39. Rather than knocking on plaintiff's friend's apartment door to confirm that plaintiff was lawfully in the building, the defendant police officers unlawfully ordered plaintiff to provide them with his identification.

40. Plaintiff complied with the officers' unlawful orders and provided them with his identifying information; however, without any legal or factual basis, the defendant officers accused plaintiff of trespassing into the building.

41. The defendant officers then unlawfully handcuffed plaintiff and transported him against his will to the PSA 5 precinct stationhouse.

42. When they arrived at the PSA 5 precinct stationhouse, plaintiff was unlawfully fingerprinted, photographed, and detained in a holding filthy cell.

43. Defendants then unlawfully searched plaintiff. At no time during the unlawful search of plaintiff did the defendant police officers recover any weapons, drugs, or contraband.

44. Defendant Sergeant JORGE ORTIZ was the supervisor who approved plaintiff's unlawful arrest and defendant Sergeant CARLOS VIERA reviewed the facts underlying plaintiff's arrest and also approved the underlying arrest as the signoff supervisor without questioning whether there was a legal basis to arrest plaintiff. Defendant supervisors Sergeant JORGE ORTIZ and Sergeant CARLOS VIERA knew or should have reasonably known, based upon the arresting officers' version of events, that the arrest of plaintiff violated his constitutional rights and the Federal Court Orders and decisions cited supra.

45. Defendant City of New York negligently trained its supervisors and officers to follow an unconstitutional legal standard when stopping, questioning, frisking, searching, and arresting individuals in NYCHA buildings for criminal trespass. Moreover, after the Federal Court ordered the City of New York and NYPD to stop engaging in the unconstitutional behavior, and to comply with the Federal Court Orders, the City of New York and NYPD negligently failed to properly retrain its officers to stop engaging in the unconstitutional behavior. As a result of the City of New York and the New York City Police Department's negligent training and supervision of its officers and employees regarding stop, question, and frisk procedures in NYCHA buildings and arrests for trespassing, plaintiff sustained the damages herein alleged.

46. The defendant police officers provided to the Manhattan District Attorney's Office false, misleading, and/or incomplete information regarding their basis for believing that plaintiff had committed a crime.

47. Amongst other fabricated and misleading facts provided to the District Attorney's Office, the defendant police officers falsely stated to the District Attorney's Office that plaintiff stated in substance, "I am not an invited guest in this building," even though plaintiff specifically told defendants that he was an invited guest in the building and requested that the defendant police officers knock on his friend's door who invited him into the building, as demanded by the officers when they stopped him.

48. After a number of hours in a holding cell at the PSA 5 precinct stationhouse, plaintiff was transported to Manhattan Central Booking and placed into an overcrowded, dirty holding cell.

49. After approximately 24 hours in police custody, on February 9, 2013, plaintiff was arraigned and released on his own recognizance.

50. Plaintiff was forced to make approximately six (6) criminal court appearances before all charges against plaintiff were dismissed in his favor by motion of the District Attorney's office on January 13, 2014.

51. The other individually named defendant police officers that were present at the scene of the incident failed to intervene to prevent the unlawful stop, question, frisk, arrest search, detention and malicious prosecution of plaintiff, even though they knew or should have known that plaintiff was unlawfully arrested, without probable cause.

52. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally conduct, enforce and sanction an unlawful vertical patrol and trespass arrest policy which has resulted in a pattern and practice of illegal stops, seizures, questioning, searches, and false arrests of residents of, and authorized visitors to, NYCHA residences.

53. Importantly, months before plaintiff was unlawfully stopped and seized by defendants, on October 4, 2012, a Federal Court held that NYPD officers were routinely stopping people in NYCHA buildings without reasonable suspicion that they were trespassing.

54. The Court specifically held that "[t]here is nothing suspicious about a person walking down the stairs of a NYCHA building in a high crime area. There is nothing suspicious about a person stating that he was visiting a friend in a NYCHA building." Davis v. City of New York, 902 F. Supp. 2d 405, 416-17 (S.D.N.Y. Oct. 4, 2012).

55. Moreover, by Order, dated January 8, 2013, the Court issued a preliminary injunction against the City of New York and the NYPD "to cease performing trespass stops" in NYCHA buildings "unless the officers have reasonable suspicion, a legal standard that requires officers to be acting on more than just a hunch." Ligon v. City of New York, No. 12-Civ-2274, 2013 U.S. Dist. LEXIS 2871, at *6 (S.D.N.Y. Jan. 8, 2013).

56. Defendant City of New York and the NYPD were deliberately indifferent to The Court's order and continued to permit NYPD officers to systematically make unlawful trespass stops of individuals in NYCHA buildings and continued the unlawful policies, practices, and custom's referenced in the Court's January 8, 2013 order.

57. The individually named defendant police officers unlawfully stopped and seized plaintiff for trespass in a NYCHA building in accordance with the policies, practices and customs of the City of New York and the NYPD for its officers to make trespass stops in NYCHA buildings without reasonable suspicion to believe the individual committed a specific crime, and in direct violation of the Court's decisions and orders in Davis v. City of New York and Ligon v. City of New York.

58. As a result of defendant City of New York and the New York City Police Department's inaccurate training of the law regarding stop, question and frisk for trespassing into privately owned buildings to its police officer and the deliberate indifference to its police officers' policy, practice and custom of routinely stopping and seizing individuals for trespass in NYCHA buildings, without reasonable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping individuals in NYCHA buildings without having an objective factual basis to believe the individual may have been committing a crime.

59. The NYPD's unlawful trespass arrest practices implemented by NYPD officers and supervisors fails to require that an arresting officer act upon observed behavior that reliably differentiates a suspected trespasser or "unauthorized person" in a NYCHA hallway from a lawful visitor in transit, or a building resident enjoying the common area of his own home.

60. Defendants' failure to provide adequate guidance, training, and support to NYPD officers regarding whom to stop, question, seize, search and arrest for trespass, results in a de facto roving checkpoint and a pattern and practice of unlawful stops, seizures, and arrests.

61. The only guiding principles provided to NYPD officers are consistent with, and reflective of, a policy, practice, and custom of reckless arrests based on less than probable cause.

62. As a result of defendant City of New York and the New York City Police Department's policy, practice, and custom of unlawful trespass arrest practices in NYCHA buildings, plaintiff Damien Calderon, was subjected to an unconstitutional stop, question, frisk, arrest, detention, and malicious prosecution on the date of the incident, as well as was denied his due process rights and right to a fair trial secured to him under the Fifth Amendment to the United States Constitution.

63. The unconstitutional stop, question, frisk, arrest, search, detention, malicious prosecution, and denial of plaintiff's due process rights and right to a fair trial secured to him under the Fifth Amendment of the United States Constitution by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked

seized, searched, detained, and maliciously prosecuted plaintiff without probable cause, reasonable suspicion or any legal justification in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

69. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

75. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

80. Defendants commenced and continued a criminal proceeding against plaintiff.

81. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

82. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

83. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

to Due Process and a Fair Trial

86. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 85 with the same force and effect as if fully set forth herein.

87. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

88. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

89. Defendants signed false and misleading criminal court complaints and/or affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

90. In withholding/creating false evidence against plaintiff DAMIEN CALDARON and in providing/withholding information with respect thereto, in particular, that DAMIEN CALDARON criminally trespassed into 1694 Madison Avenue, New York, New York, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

91. As a result of the foregoing, plaintiff DAMIEN CALDARON, sustained, inter alia, a violation of the right to due process and the right to a fair trial under the Fifth Amendment to the United States Constitution, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Unlawful Search

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

96. Defendants lacked probable cause to search plaintiff.

97. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The vertical patrol policy and trespass arrest practices involve systemic stopping, seizing, questioning, and searching of any and all persons observed in common areas of NYCHA residences absent individualized suspicion.

102. By adopting and implementing the vertical patrol policy and trespass arrest practices in this manner, the City of New York and the New York City Police Department has enforced, promoted, encouraged and sanctioned a policy, practice, and/or custom of roving pedestrian checkpoints for general crime control wherein they indiscriminately stop and seize individuals in the absence of objective, individualized criteria in violation of the Fourth Amendment to the United States Constitution, and in direct violation of the Court's decisions and orders in Davis v. City of New York and Ligon v. City of New York.

103. By adopting and implementing the vertical patrol policy and trespass arrest practices in this manner, the City of New York and the New York City Police Department has enforced, promoted, encouraged and sanctioned a policy, practice and/or custom of arresting individuals for trespass without probable cause to establish that a criminal offense has been or is being committed, as required by the Fourth Amendment to the United States Constitution.

104. These Constitutional abuses and violations were, and are, directly and proximately caused by policies, practices and/or customs devised, implemented, enforced, promoted, encouraged and sanctioned by the City of New York and the New York City Police

Department, including but not limited to: (a) the failure to adequately and properly screen, train, and supervise NYPD officers; (b) the failure to properly and adequately monitor and discipline NYPD officers; and (c) the overt and tacit encouragement and sanctioning of, and the failure to rectify, the NYPD's suspicionless stops, seizures, questions, searches and arrests for trespass.

105. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

106. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

107. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

108. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, frisked, searched, arrested, and detained.

109. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

EIGHTH CAUSE OF ACTION

Failure to Intervene

110. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

112. Defendants failed to intervene to prevent the unlawful conduct described herein.

113. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

115. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff DAMIEN CALDARON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 13, 2015

By:

/s/

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POLICE OFFICER GEORGE STRYSKO, Tax Reg. 940776, 13th Precinct, 230 East 21st Street, New York, New York 10010
SERGEANT JORGE ORTIZ, Tax Reg. 930884, PSA 5, 221 East 123rd Street, New York, New York 10029
SERGEANT CARLOS VIERA, Tax Reg. 926259, PSA 5, 221 East 123rd Street, New York, New York 10029

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
August 13, 2015

/s/
STUART E. JACOBS